Bureau of the Budget in accordance with the Federal Reports Act of 1942.

Done at Washington, D. C., this 13th day of April 1951.

S. R. SMITH,
Director, Fruit and Vegetable Branch, Production and Marketing Administration.

[F. R. Doc. 51-4575; Filed, Apr. 16, 1951; 12:38 p. m.]

TITLE 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

Appendix—Public Land Orders

[Public Land Order 709]

NEW MEXICO

WITHDRAWING PUBLIC LAND FOR USE OF THE STATE DEPARTMENT IN CONNECTION WITH THE RIO GRANDE CANALIZATION PROJECT

By virtue of the authority vested in the President by the act of May 13, 1924 (43 Stat. 118), as amended by the act of August 19, 1935 (49 Stat. 660; 22 U. S. C. 277c), and pursuant to Executive Order No. 9337 of April 24, 1943, it is ordered as follows:

Subject to valid existing rights, the following-described public land is hereby withdrawn from all forms of appropriation under the public-land laws, including the mining and mineral-leasing laws, and reserved for the use of the Department of State in connection with the Rio Grande Canalization Project:

NEW MEXICO PRINCIPAL MERIDIAN

T. 17 S., R. 4 W.,
Sec. 4.

The area described contains 579.80 acres.

This order shall be subject to the order of April 8, 1935, of the Secretary of the Interior establishing New Mexico Grazing District No. 4, so far as such order affects the above-described land.

It is intended that the land described above shall be returned to the administration of the Department of the Interior when it is no longer needed for the purpose for which it is reserved.

OSCAR L. CHAPMAN,
Secretary of the Interior.

APRIL 10, 1951.

[F. R. Doc. 51-4474; Filed, Apr. 16, 1951; 8:46 a. m.]

[Public Land Order 710]

WASHINGTON

PARTIAL REVOCATION OF PUBLIC LAND ORDER NO. 261 OF JANUARY 24, 1945 RESERVING LANDS FOR THE USE OF THE WAR DEPARTMENT FOR MILITARY PURPOSES

By virtue of the authority vested in the President and pursuant to Executive Order No. 9337 of April 24, 1943, it is ordered as follows:

Public Land Order No. 261 of January 24, 1945, reserving lands for the use of the War Department for military purposes, is hereby revoked so far as it affects the following-described public land:

WILLAMETTE MERIDIAN

T. 13 N., R. 28 E.,
Sec. 26, W½.

The area described contains 320 acres.

The land is withdrawn for reclamation purposes by the orders of April 26, 1937 and December 21, 1943 of the Secretary of the Interior.

This order shall become effective at 10:00 a. m. on the 35th day after the date of this order.

OSCAR L. CHAPMAN,
Secretary of the Interior.

APRIL 10, 1951.

[F. R. Doc. 51-4473; Filed, Apr. 16, 1951; 8:46 a. m.]

[Public Land Order 711]

NEBRASKA AND SOUTH DAKOTA

REVOKING EXECUTIVE ORDER NO. 6604 OF FEBRUARY 16, 1934, WITHDRAWING PUBLIC LANDS FOR SOIL CLASSIFICATION

By virtue of the authority vested in the President by section 1 of the act of June 25, 1910, C. 421, 36 Stat., 847 (43 U. S. C. sec. 641), and pursuant to Executive Order No. 9337 of April 24, 1943, it is ordered as follows:

Executive Order No. 6604 of February 16, 1934, withdrawing all public lands in the following-described townships in Nebraska and South Dakota for the purpose of soil classification, is hereby revoked:

NEBRASKA

SIXTH PRINCIPAL MERIDIAN

Tps. 32, 33, and 34 N., R. 9 W.
Tps. 32, 33, 34, and 35 N., R. 10 W.
Tps. 33 and 35 N., R. 11 W.

The areas described, including both public and non-public lands, aggregate approximately 207,360 acres.

SOUTH DAKOTA

BLACK HILLS MERIDIAN

Tps. 3 N., Rs. 28, 29, and 30 E.
T. 4 N., R. 30 E.
Tps. 3 and 4 N., R. 31 E.
Tps. 4 N., Rs. 32, 33, and 34 E.

FIFTH PRINCIPAL MERIDIAN

Tps. 95 N., Rs. 65, 66, and 67 W.
Tps. 96 N., Rs. 67 and 68 W.
Tps. 97 N., Rs. 68 and 69 W.
T. 98 N., R. 69 W.
Tps. 97, 98, and 99 N., R. 70 W.
Tps. 99, 100, 101, 102, 104, and 105 N., R. 71 W.
Tps. 99, 100, 101, 102, 103, 104, and 105 N., R. 72 W.
Tps. 100, 101, 102, 103, 104, 105, and 106 N., R. 73 W.
Tps. 101, 103, 104, 105, and 106 N., R. 74 W.
Tps. 101, 102, 103, 104, 105, and 106 N., R. 75 W.
Tps. 101, 102, 103, 104, 105, and 106 N., R. 76 W.
Tps. 101, 102, 103, 104, 105, and 106 N., R. 77 W.
Tps. 101, 102, 103, 104, 105, 106, 107, 108, and 109 N., R. 78 W.
Tps. 103, 104, 105, 106, 107, 108, and 109 N., R. 79 W.

The areas described, including both public and non-public lands, aggregate approximately 1,820,160 acres.

Some of the public lands in the above-described areas were reserved for use, administration, and disposition in accordance with the provisions of Title III of the Bankhead-Jones Farm Tenant Act of July 22, 1937, 50 Stat. 522, 525 (7 U. S. C. sec. 1011), and the related provisions of Title IV thereof, and the jurisdiction thereover was transferred to the Department of Agriculture in connection with the South Central South Dakota Project (SD-LU-2) by Executive Order No. 10046 of March 24, 1949.

The rest of the public lands within the above-described areas are scattered tracts aggregating approximately 96 acres in Nebraska and 5,080 acres in South Dakota. They are considered to be chiefly valuable for disposal at public sale. No application for these lands may be allowed under the homestead, small-tract, or desert-land laws or any other non-mineral public-land laws unless the land has already been classified as valuable or suitable for such type of application or shall be so classified upon consideration of an application.

This order shall not otherwise become effective to change the status of such lands until 10:00 a. m. on the 35th day after the date of this order. At that time the said lands shall, subject to valid existing rights and the provisions of existing withdrawals, become subject to application, petition, location, and selection as follows:

(a) *Ninety-one day period for preference-right filings.* For a period of 91 days, commencing at the hour and on the day specified above, the public lands affected by this order shall be subject only to (1) application under the homestead or the desert-land laws or the Small Tract Act of June 1, 1938, 52 Stat. 609 (43 U. S. C. 682a), as amended, by qualified veterans of World War II and other qualified persons entitled to preference under the act of September 27, 1944, 58 Stat. 747 (43 U. S. C. 279-284), as amended, subject to the requirements of applicable law, and (2) application under any applicable public-land law, based on prior existing valid settlement rights and preference rights conferred by existing laws or equitable claims subject to allowance and confirmation. Applications under subdivision (1) of this paragraph shall be subject to applications and claims of the classes described in subdivision (2) of this paragraph. All applications filed under this paragraph either at or before 10:00 a. m. on the 35th day after the date of this order shall be treated as though filed simultaneously at that time. All applications filed under this paragraph after 10:00 a. m. on the said 35th day shall be considered in the order of filing.

(b) *Date for non-preference-right filings.* Commencing at 10:00 a. m. on the 126th day after the date of this order, any lands remaining unappropriated shall become subject to such application, petition, location, selection, or other appropriation by the public generally as may be authorized by the public-land laws. All such applications filed

either at or before 10:00 a. m. on the 126th day after the date of this order, shall be treated as though filed simultaneously at the hour specified on such 126th day. All applications filed thereafter shall be considered in the order of filing.

A veteran shall accompany his application with a complete photostatic, or other copy (both sides), of his certificate of honorable discharge, or of an official document of his branch of the service which shows clearly his honorable discharge as defined in § 181.36 of Title 43 of the Code of Federal Regulations, or constitutes evidence of other facts upon which the claim for preference is based and which shows clearly the period of service. Other persons claiming credit for service of veterans must furnish like proof in support of their claims. Persons asserting preference rights, through settlement or otherwise, and those having equitable claims, shall accompany their applications by duly corroborated statements in support thereof, setting forth in detail all facts relevant to their claims.

Applications for these lands, which shall be filed in the Bureau of Land Management, Washington 25, D. C., shall be acted upon in accordance with the regulations contained in § 295.8 of Title 43 of the Code of Federal Regulations and Part 296 of that title, to the extent that such regulations are applicable. Applications under the homestead laws shall be governed by the regulations contained in Parts 166 to 170, inclusive, of Title 43 of the Code of Federal Regulations, and applications under the desert-land laws and the said Small Tract Act of June 1, 1938, shall be governed by the regulations contained in Parts 232 and 257, respectively, of that title.

Inquiries concerning these lands shall be addressed to the Director, Bureau of Land Management, Washington 25, D. C.

OSCAR L. CHAPMAN,
Secretary of the Interior.

APRIL 10, 1951.

[F. R. Doc. 51-4472; Filed Apr. 16, 1951; 8:46 a. m.]

TITLE 49—TRANSPORTATION

Chapter I—Interstate Commerce Commission

[No. 10122]

PART 139—STANDARD TIME ZONE BOUNDARIES

BOUNDARY LINE BETWEEN MOUNTAIN AND PACIFIC ZONES

In § 139.7, *Boundary line between mountain and Pacific zones,* appearing in the 1949 Edition of the Code of Federal Regulations, the last sentence of explanatory note under paragraph (b) should refer to "mountain" zone instead of "central" zone. As amended the note should read:

NOTE: While the order in 78 I. C. C. 606 did not in terms modify the boundary in Utah, the effect was a slight modification as "the point last described" in the preceding paragraph, as revised, is Woodruff, Idaho, on the Malad Valley branch of the Oregon Short Line Railroad (now the Union Pacific System), whereas prior to that order it was Weston, Idaho, on the main line of that road. The effect was to include in the mountain zone Utah points on the branch line between it and the main line.

(Secs. 1, 2, 4, 40 Stat. 450, 451, sec. 1, 41 Stat. 1446, 42 Stat. 1434; 15 U. S. C. 261-265)

[SEAL] W. P. BARTEL,
Secretary.

APRIL 11, 1951.

[F. R. Doc. 51-4485; Filed, Apr. 16, 1951; 8:48 a. m.]

PROPOSED RULE MAKING

DEPARTMENT OF AGRICULTURE

Production and Marketing Administration

[7 CFR, Part 29]

TOBACCO INSPECTION

ANNOUNCEMENT OF REFERENDUM IN CONNECTION WITH PROPOSED DESIGNATION UNDER TOBACCO INSPECTION ACT OF TOBACCO AUCTION MARKET OF LAMAR, S. C.

Pursuant to the authority vested in the Secretary of Agriculture by The Tobacco Inspection Act (7 U. S. C. 511 et seq.) and in accordance with the applicable regulations (13 F. R. 9474-9479) issued thereunder by the Secretary, notice is given that a referendum of tobacco growers will be conducted from May 10 through May 12, 1951, to determine whether growers favor the designation of the Lamar, South Carolina, tobacco auction market for free and mandatory inspection of tobacco sold thereon.

Growers who sold tobacco on the aforesaid market during the 1950 marketing season shall be eligible to vote in said referendum. Ballots for use in said referendum will be mailed to all eligible voters insofar as their names and addresses are known. Eligible voters who do not receive ballots by mail may obtain them from the county agent or the office of the county PHA committee at Darlington, S. C., or from the office of the Planters Warehouse at Lamar.

All completed ballots shall be mailed to the Tobacco Branch, Production and Marketing Administration, United States Department of Agriculture, P. O. Box 549, Raleigh, North Carolina, and, in order to be counted in said referendum, must be postmarked not later than midnight, May 12, 1951.

Issued this 12th day of April 1951.

[SEAL] CHARLES F. BRANNAN,
Secretary of Agriculture.

[F. R. Doc. 51-4499; Filed, Apr. 16, 1951; 8:51 a. m.]

[7 CFR, Part 54]

DOMESTIC RABBITS AND EDIBLE PRODUCTS THEREOF

GRADING AND INSPECTION; U. S. SPECIFICATIONS FOR CLASSES, STANDARDS, AND GRADES WITH RESPECT THERETO

Notice is hereby given that the United States Department of Agricuuture is considering the issuance, as hereinafter proposed of revised rules governing the grading and inspection of domestic rabbits and edible products thereof and United States specifications for classes, standards, and grades with respect thereto, to become effective May 1, 1951, pursuant to the authority contained in the Agricultural Marketing Act of 1946 (60 Stat. 1087; 7 U. S. C. 1621 et seq.) and the Department of Agriculture Appropriation Act of 1951 (Pub. Law 759, 81st Cong. approved September 6, 1950). The proposed rules and specifications will supersede the currently effective provisions of Part 70 (7 CFR Part 70), insofar as applicable to domestic rabbits and edible products thereof, and will thereupon be promulgated as Part 54 (7 CFR Part 54). On March 13, 1951 (16 F. R. 2350), a proposed revision of the provisions in Part 70 insofar as applicable to poultry and edible products thereof, was published in the FEDERAL REGISTER; and it is contemplated that the revised poultry regulations and the revised domestic rabbit regulations would become effective at the same time.

A substantial portion of the provisions of the proposed rules and specifications has received thorough consideration throughout the country at conferences held with the industry and other interested persons. Among other things, the proposed revision of rules and specifications changes the provisions governing the grading of ready-to-cook domestic rabbits by requiring, as a prerequisite thereto, some form of prescribed inspection for wholesomeness; clarifies some of the definitions and provisions contained in the currently effective regulations (7 CFR Part 70); and provides changes in the classes and standards of quality for ready-to-cook domestic rabbits.

All persons who desire to submit written data, views, or arguments in connection with the proposals should submit the same in triplicate to the Chief of the Marketing Services Division, Poultry Branch, Production and Marketing Administration, United States Department of Agriculture, Room 2099 South Building, Washington 25, D. C., not later than the close of business on the 15th day after the publication of this notice in the FEDERAL REGISTER.

The proposal is as follows:

SUBPART A—RULES GOVERNING THE GRADING AND INSPECTION OF DOMESTIC RABBITS AND EDIBLE PRODUCTS THEREOF

DEFINITIONS

Sec.
54.1 Definitions.

ADMINISTRATION

54.2 Administration.